

The Court **SUSTAINS** Defendant's demurrer to Plaintiffs' fraud cause of action, with leave to amend.

**Ruling on the Demurrer**

The Court **OVERRULES** Defendant's demurrer as to the second cause of action for breach of fiduciary duty and the fourth cause of action for negligence and **SUSTAINS** Defendant's demurrer as to the third cause of action for fraud **with leave to amend**. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (CCP, §472b; CRC, rule 3.1320(g).)

**12. 9:00 AM CASE NUMBER: C25-03004**  
**CASE NAME: K. H. VS. CONTRA COSTA COUNTY**  
**\*HEARING ON MOTION IN RE: JUDGMENT ON PLEADINGS**  
**FILED BY: CONTRA COSTA COUNTY**  
**\*TENTATIVE RULING:\***

Defendant Contra Costa County's motion for judgment on the pleadings is **granted without leave to amend** as to the first amended complaints filed by K.H. and C.M.

The County filed a motion for judgment on the pleadings arguing that the claims are barred by discretionary immunity under Government Code section 820.2. The County also argues that the complaint is uncertain under Code of Civil Procedure section 430.10(f).

The County filed a motion for judgment on the pleadings as to all claims asserted by Plaintiffs C.M. and K.H. Plaintiffs filed separate lawsuits in Madera County, which were consolidated. Contra Costa County was added as a DOE defendant on January 6, 2025. They answered on March 17, 2025. The cases were later transferred to this County.

Plaintiffs K.H. and C.M. included nearly identical allegations and their allegations are referred jointly as "FAC", unless otherwise specified as being from K.H.'s or C.M.'s first amended complaint. Plaintiffs allege that they were sexually abused as children while in the foster care system. K.H. alleges that she was in foster care, along with her sister C.M., starting in 1983 and that K.H. was sexually abused by the foster father from 1985 to 1993. (K.H. FAC ¶23.) Similarly, C.M. alleges that she was in foster care, along with her sister K.H., starting in 1983 and that C.M. was sexually abused by the foster father from 1983 to 1993. (C.M. FAC ¶23.) Plaintiffs allege that they reported the sexual abuse to the social worker assigned to them but they took no action, failed to conduct an investigation and the abuse continued. (FAC ¶25.)

Plaintiffs allege that children in foster care are the legal custody of the County Department of Social Services. (FAC ¶2.) Plaintiffs allege that the County owed a duty of care to Plaintiffs to ensure the safety of children in foster care, Welfare and Institutions Code section 16000.1(a). (FAC ¶10.) It is alleged that the County had "a non-delegable duty' to use reasonable care in the investigation, licensing, supervision, and/or monitoring of foster care facilities, homes, and/or families with whom it placed foster children, and to develop or implement programs, guidelines, procedures and/or training to prevent the abuse of foster children placed within foster care facilities, homes and/or families."

(FAC. ¶11.) A list of the duties owed is included in the complaint. (FAC ¶16.)

Plaintiffs also allege that the County owed Plaintiffs mandatory duties, including: “Welfare and institutions Code sections 328, 16501(f), and 16504; Health and Safety Code section 1522. et eq., Penal Code sections 11165.7, 11165.9 and 11166; Department of Social Services Child Welfare Services Manual Sections 31-320. 31-401, et seq. and 31-501.” (FAC ¶19.)

Plaintiffs allege that the County is vicariously liable for the acts of its employees. (Government Code section 815.2, 815.4 and 815.6.) Plaintiff also alleges that Government Code section 815.2 immunity does not bar the claims because the acts here were not policy decisions, but operational or ministerial decisions and no employee consciously balanced the risks and advantages such that they engaged in discretionary activity. (FAC ¶60.)

Plaintiffs sued the County for negligence. Since the County was added as a DOE defendant they are included in cause of action two for negligence. The County filed this motion for judgment on the pleadings, arguing that discretionary immunity bars Plaintiffs’ claims. The County argues that Government Code section 820.2 applies here, which makes a public employee immune for their discretionary acts. Further, where a public employee is immune to liability for a claim, such as under section 820.2, the public entity employer is also immune. (Gov. Code, § 815.2(b).)

There are two recent Court of Appeal opinions that have considered whether a County has discretionary immunity involving placement of children in foster care families where the child is sexually abused. *D.G. v. Orange County Social Services Agencies* (2025) 108 Cal.App.5th 465 held that the County did not meet its burden on discretionary immunity at the summary judgment stage. The following month, *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606 held that discretionary immunity barred a negligence claim against the county on demurrer.

In *D.G.*, the court agreed with the “County that ‘decisions of child welfare agency employees—regarding determinations of child abuse, the potential risk to a child, placement of a child, removal of a child, and other resultant actions—are subjective *discretionary* ones that are incidental to the employees’ investigations.’ [Citation].” (*D.G.*, *supra*, 108 Cal.App.5th at 473.)

The court held that discretionary immunity requires a two-part analysis and after finding that a decision is discretionary, the public entity must then show that “the employee who made the decision at issue ‘actually reached a considered decision knowingly and deliberately encountering the risks that give rise to plaintiffs complaint. ... [¶] ... [T]o be entitled to immunity the state must make a showing that such a policy decision, consciously balancing risks and advantages, took place. The fact that an employee normally engages in “discretionary activity” is irrelevant if, in a given case, the employee did not render a considered decision.’ (*Johnson v. State of California* (1968) 69 Cal.2d 782, 794–795, fn. 8.)” (*D.G.*, *supra*, 108 Cal.App.5th at 473-474.) The court noted that *Johnson* was followed in *Caldwell v. Montoya* (1995) 10 Cal.4th 972, 983. (*D.G.*, *supra*, 108 Cal.App.5th at 474.)

In *D.G.*, the court found that the County had not presented any evidence on the second part of this analysis and therefore, had not met its burden on summary judgment. (*Id.* at 474.) The court

reversed the trial court's granting of summary judgment on immunity grounds. (*Id.* at 475.)

In *K.C.*, the court also held that "decisions pertaining to foster care placement are discretionary acts within the meaning of Government Code section 820.2. [Citations.]... [D]ecisions as to whether to undertake investigative or corrective action in response to reported child abuse fall outside the ambit of such [continued] surveillance and are '[no] less "discretionary" for purposes of the immunity of *Government Code section 820.2* than the original placement decision.' [Citation.]" (*K.C.*, *supra*, 109 Cal.App.5th at 619.)

In *K.C.*, the plaintiff argued that "County's demurrer should have been overruled because the operative complaint did not indicate 'an employee of the County made a considered ... decision' or 'actually exercised' 'discretion ... by the weighing of risks and benefits in deciding on the challenged course of action.' " (*K.C.*, *supra*, 109 Cal.App.5th at 619.) The court, citing to *Caldwell*, *supra*, 10 Cal.4th at 982, explained that an immunity finding " 'requires a showing that "the specific conduct giving rise to the suit" involved an actual exercise of discretion, i.e., a "[conscious] balancing [of] risks and advantages" '[citation.] 'a strictly careful, thorough, formal, or correct evaluation' is not mandatory [citation]." (*K.C.*, *supra*, 109 Cal.App.5th at 619.) The court reviewed the allegations in *K.C.*'s complaint and held that "under a 'fair reading' of the complaint (*Caldwell*, *supra*, at p. 984), *K.C.* essentially alleged County's social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. '[C]laims of improper evaluation cannot divest a discretionary policy decision of its immunity.' (*Caldwell*, *supra*, at p. 984, fn. & italics omitted.)". (*K.C.*, *supra*, 109 Cal.App.5th at 619-620.)

In *K.C.*, it was alleged that the child made complaints regarding the abuse to her social worker, but no corrective action was taken. (*K.C.* At 614-615.) In *D.G.*, the child told his social worker that "bad people are hurting" him and tried to explain what that meant and there was evidence that the child had a known bedwetting problem. (*D.G.* at 468-469.) In *D.G.*, there was also evidence that another child had made reports regarding the same foster parent that he felt weird taking showers with the foster parent because it was yucky. (*D.G.* at 469.) There was no follow up on the child complaints and ultimately the foster parent was allowed to adopt *D.G.* (*Ibid.*)

On June 25, 2025, the California Supreme Court granted review of *K.C.* on the following issue: "Was plaintiff's complaint alleging that a social worker failed to investigate or act in response to claims of sexual abuse subject to demurrer on the ground that discretionary act immunity under Government Code section 820.2 precluded liability?" The Supreme Court also stated that "[p]ending review, the opinion of the Court of Appeal... may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 456, 20 Cal. Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict." (*K.C. v. County of Merced* (2025) 333 Cal.Rptr.3d 361, Supreme Court case no. S290435.) The case has been fully briefed, but the Supreme Court has not scheduled oral argument. Since an opinion is not immediately forthcoming by the Supreme Court, the Court shall decide this issue.

*K.C.*, distinguished *D.G.*, by explaining that *D.G.* was decided on summary judgment, not

demurrer. (*K.C.*, *supra*, 109 Cal.App.5th at 620, fn. 9.) But allegations in both *K.C.* and *D.G.* were very similar and *K.C.* did not explain what allegation was included in *D.G.* that explains the differing results between the two cases. It appears to the Court, that these two cases disagree on how to apply the second step in the discretionary immunity analysis in cases involving abuse of foster care children. Thus, there are conflicting court of appeal opinions, and the Court may decide to follow either *K.C.* or *D.G.*'s approach to the discretionary immunity analysis. (*Auto Equity Sales*, *supra*, 57 Cal.2d at 456.)

Plaintiffs argue that *K.C.* was wrongly decided. Plaintiffs point to *Johnson v. State of California* (1969) 69 Cal.2d 782 where the Supreme Court held that a County's initial decision to place a child in the foster home may have been discretionary, but that the implementation of that policy, including the determination whether to warn the foster parents of known dangers, was ministerial and not subject to immunity. (*Id.* at 795-796.)

Decades after *Johnson*, the California Supreme Court decided *Caldwell v. Montoya* (1995) 10 Cal.4th 972. There, the Supreme Court discussed *Johnson* in detail. Explaining that "*Johnson* precludes a finding of immunity solely on grounds that 'the [affected] employee's *general course of duties* is "discretionary" . . .' (*ibid.*, italics added), and requires a showing that 'the specific conduct giving rise to the suit'" involved an *actual* exercise of discretion, i.e., a '[conscious] balancing [of] risks and advantages' (*id.* at pp. 794, 795, fn. 8). But *Johnson* does not require a *strictly careful, thorough, formal, or correct* evaluation. Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy. [Citation.]" (*Caldwell*, *supra*, 10 Cal.4th at 983-984.) In *Caldwell* the Supreme Court went on to explain that "[a] fair reading of the instant complaint" shows that there are allegations that the public entity made an *actual, conscious, and considered* collective policy decision. (*Ibid.*) The Supreme Court also explained that "claims of *improper* evaluation cannot divest a discretionary policy decision of its immunity." (*Ibid.*)

Plaintiffs cite several other cases to support their position. However, none of those cases conflict with *K.C.* and *D.G.* The Court has reviewed these cases to determine whether *K.C.* or *D.G.* is a more persuasive opinion.

In *Barner v. Leeds* (2000) 24 Cal.4th 676 the Supreme Court held that a public defender's legal malpractice when defending an innocent client involved the lawyer's operational decisions, not discretionary policy decisions. (*Id.* at 689.) The Court's ruling involved a discussion of publicly employed health professionals and deputy public defenders in exercising their professional judgment when discharging duties owed to their clients. (*Id.* at 687-689.) The Court also discussed the policy considerations and found that a public defender should be subjected to the same civil liability as private attorneys performing identical professional services in the same type of proceedings. (*Id.* at 692.) *Barner* does not apply here, where the issue is the conduct of county social workers and their handling of foster care children. The decision to place children in foster care, conduct investigations and remove children when necessary, is handled within the public sphere.

In *Elton v. County of Orange* (1970) 3 Cal.App.3d 1053 the court concluded that decisions about the maintenance, care, or placement of a child "do not achieve the level of basic policy

decisions” and are thus, not immune from liability under section 820.2. (*Id.* at 1058.) Courts have since distinguished or limited *Elton*’s holding. In *Ronald S. v. County of San Diego* (1993) 16 Cal.App.4th 887, the court explained that *Elton* can be distinguished by considering that “[t]he maintenance of a child in a foster home involves an obligation of continued supervision by the County. The child remains a ward of the County. Much of what the County is obligated to do in terms of continued administration of the child’s welfare undoubtedly constitutes simple and uncomplicated surveillance which reasonably could be characterized as ministerial.” (*Id.* at 898.) Further, “*Elton* was decided in 1970, many years before the adoption of current statutes (such as Welf. & Inst. Code, § 16501.1) requiring that social workers engage in a discretionary analysis of the needs and interests of a dependent child.” (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1464.) Thus, while *Elton* appears to make a broad statement regarding the nondiscretionary actions, the Court finds *Elton* does not apply here because the laws requiring a discretionary analysis of social workers have changed, and here, the allegations are not based upon the social workers failing to perform uncomplicated surveillance.

Here, the Court finds that *K.C.*’s analysis of the discretionary immunity test under *Caldwell* is more persuasive than *D.G.*’s analysis. Therefore, the Court finds that where *K.C.* and *D.G.* conflict, the Court will follow *K.C.* Here, the allegations are nearly identical to the ones in *K.C.* Plaintiffs allege that they informed their social workers that they were experiencing abuse by their foster father, but nothing was done. A fair reading of these allegations includes that the County’s social workers were confronted with reports of sexual abuse that should have prompted investigative or corrective action, but they failed to properly exercise their discretion to do so. Under *K.C.* these allegations make the claims against the County immune under discretionary immunity and therefore, the Court finds that the negligence claim against the County is **barred**.

The County also argues that the complaint is uncertain. However, uncertainty is not a ground available in a motion for judgment on the pleadings. Code of Civil Procedure section 438(c)(2) states that “The motion provided for in this section may be made as to either of the following: (A) The entire complaint or cross-complaint or as to any of the causes of action stated therein. (B) The entire answer or one or more of the affirmative defenses set forth in the answer.” (Code of Civil Procedure section 438(c)(2).) The “uncertainty” of a pleading may be raised in a special demurrer, but “furnishes no ground for support of a judgment on the pleadings.” (*Bates v. Escondido Union High School Dist.* (1933) 133 Cal.App.725, 731.) A party’s failure to raise the defect of uncertainty by demurrer constitutes a waiver of that objection. (*Stockton Newspapers, Inc. v. Redevelopment Agency* (1985) 171 Cal.App.3d 95, 103.)

**13. 9:00 AM CASE NUMBER: MSC22-00100**  
**CASE NAME: RIDEAU VS GHC OF CONTRA COSTA, ET AL.**  
**HEARING ON SUMMARY MOTION**  
**FILED BY: GHC OF CONTRA COSTA, LLC**  
**\*TENTATIVE RULING:\***

The Motion of Defendants GHC of Contra Costa, LLC, Life Generations Healthcare, and Ann Nguyen-Traxler, M.D. for Summary Judgment or, in the Alternative, Summary Adjudication of Issues is **denied**